



Prosecutions Division Judgment Notifier



DPP v Hoch (a pseudonym) & Charles (a pseudonym) **[2020] VSCA 190**

The Victorian Supreme Court of Appeal (VSCA) has considered the admissibility of admissions made to police and admissions made to Crown Casino security guards.

The court concluded that Crown Casino security guards fall within the definition of 'investigating official' pursuant to s 464(2) of the *Crimes Act 1958* (and within the dictionary of the *Evidence Act 2008*).

In the absence of the provision of caution and rights under the *Crimes Act 1958*, the admissions to Crown Casino security would have been inadmissible. In the circumstances of this case, the VSCA concluded that admissions to police, though properly obtained, were inadmissible due to the conduct of Crown Casino security encouraging the accused to not exercise their rights, in particular, the right to remain silent.

BACKGROUND

On the 1st of May 2017, the accused, Hoch and Charles, were arrested by Crown Casino security, after being observed 'engaging in conduct that corrupts, or would corrupt, a betting outcome, contrary to s 195C of the *Crimes Act 1958*'.

Following their arrest by security and prior to police arrival, both Hoch and Charles were subjected to questioning by security during which each accused made admissions. Neither accused were given a caution or advised of their rights.¹ During the course of this questioning, security stated: they 'were formerly police'; they 'knew police procedure'; 'if they tell the truth they are likely to go home quickly'; 'if you don't co-operate you will cop the full extent of the law'. (For further criticism of the conduct of Crown Casino security, see [133]-[145])

During the recorded interviews, police gave the caution and rights to both accused. Both accused made admissions.

The trial judge concluded that Crown security were investigating officials as defined in the *Crimes Act 1958*², and were therefore obliged to caution and ensure each accused knew their rights.

¹ Pursuant to ss 464A(3), 464D and 464F an investigating official is required to advise a person of their rights to remain silent, contact a friend/relative and legal practitioner, and contact a consular office of a country they are from if not an Australian citizen nor permanent resident, prior to being interviewed.

² Pursuant to s 464(2) investigating official is defined as a police officer (**first limb**) OR a person appointed under an Act whose functions or duties include functions or duties in respect of the prevention or investigation of offences (**second limb**).

The trial judge further concluded that the admissions to police were tainted by the conduct of Crown Casino security. On this basis, the trial judge ruled the admissions inadmissible pursuant to s 90 of the *Evidence Act 2008*.

DECISION

Investigating Official

Whether or not a person is an investigating official (under the second limb) is a question of fact requiring the identification and characterisation of the relevant functions and duties of the officers.

As can be seen, the functions of all of the *special employees*³ involved, including the relevant officers – were functions ‘in respect of the prevention or investigation of offences’. Unsurprisingly, there was a division of function, as different skills were required at different stages of the process. Once the technical surveillance experts had detected the offending, the function of the relevant officers was to prevent its continuation by arresting the suspects and detaining them, thus facilitating investigation of the offence by Victoria Police.⁴

The conclusion we have reached means that, in future, any questioning of a suspect by a ‘special employee’ having responsibility for security and surveillance will be authorised – and regulated – by s 464A. Importantly, this means that such special employees – as investigating officials – will be obliged to administer the caution required by s 464A(3) if they propose to question the suspect pending the arrival of police.⁵

Admissions to Police

The VSCA accepted the trial judge’s comments regarding the interviews conducted by police being tainted by the conduct of Crown Casino security.

It is difficult to see how it can be said that findings of this nature [being the tainted police interviews], particularly when brought about by improper questioning carried out by ‘investigating officials’, cannot trigger the exercise of a general unfairness discretion of the kind embodied within s 90 [of the *Evidence Act 2008*]. That section empowers the court in a criminal proceeding to refuse to admit evidence led by the prosecution of an admission where to use the evidence would be ‘unfair to a defendant’. Of course, the primary focus of s 90 is upon the fairness of the use of the evidence at trial, rather than whether or not those who obtained the admissions had themselves acted fairly or unfairly. (citation omitted)

In our view, not only was it open to his Honour to exclude the evidence of the police interviews under that section, he was clearly correct to do so. The unfairness was palpable. On his Honour’s unchallenged findings, both respondents believed they were likely to be imprisoned unless they cooperated with police. Because of the pressure applied to them by the casino’s officials, his Honour found, they did not believe they had a right to silence when questioned by police, notwithstanding the administration of the required caution.⁶

³ A special employee is a specially licenced employee pursuant to s 38 of the *Casino Control Act 1991*.

⁴ *DPP v Hoch (a pseudonym)* [2020] VSCA 190, [126].

⁵ *Ibid*, [130] – the court further stated the obligation to caution will only arise where the investigating official wants to question the person.

⁶ *Ibid*, [147]-[148].

In *obiter*, the VSCA opined that the trial judge could have also excluded the admissions to police pursuant to s 84 of the *Evidence Act 2008* based on oppressive conduct.⁷

IMPACT ON PROSECUTORS

Prosecutors seeking to rely on admissions made to statutorily appointed investigative officials should ensure the official has complied with the relevant provisions of the *Crimes Act 1958*.

Prosecutors should also consider whether the conduct of statutorily appointed investigative officials impacts on the admissibility of admissions made to police.

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⁷ Ibid, [149]-[150] – the oppressive conduct being the actions of Crown Casino security.